

Hanuman Singh v. State of U.P.

Allahabad High Court · Division Bench · 22 August 2019 · Writ - C No. 20279 of 2019 · WRIT - C No. - 20279 of 2019 · **Writ disposed; remaining billing grievance relegated to clause 7.10.**

HEADNOTE

Where a consumer seeks mandamus to correct an electricity bill and restore supply after a corrected bill has already been issued, and does not dispute that clause 7.10 of the U.P. Electricity Supply Code, 2005 is the statutory forum, the High Court will dispose of the writ with a direction that the clause 7.10 authority consider the representation and pass a reasoned speaking order within four weeks.

FACTUAL SUMMARY

Hanuman Singh sought a writ of mandamus directing the electricity respondents to correct his electricity bill and restore his connection. Counsel for the distribution licensee produced a corrected bill, received by the petitioner himself on 1 June 2019 and annexed at page 46 of the paper book, and submitted that any remaining grievance against that bill lay before the higher authority under clause 7.10 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not dispute that legal position.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

billing-grievance-forum

HOLDING

A writ seeking correction of an electricity bill and restoration of supply is disposed of where the licensee has already issued a corrected bill and the consumer does not dispute the clause 7.10 forum: if the consumer approaches the higher authority under clause 7.10 of the U.P. Electricity Supply Code, 2005, that authority shall consider the representation and pass a reasoned speaking order within four weeks of production of a certified copy of this order. ¶ 2

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances After a corrected bill had already been served, residual billing and restoration grievances were left to the undisputed clause 7.10 higher-authority route, with a four-week consider-and-speak direction. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILL CORRECTION AND RESTORATION OF SUPPLY

Left to the clause 7.10 higher authority to consider and pass a speaking order. ¶ 2